

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPA041442: ALISA MARIE BACCUS vs NEIL KISHORE RIKHI

07/14/2026 in Department 43

**Motion to Quash Defendant Neil Kishore Rikhi's Deposition Subpoena for Personal
Appearance and Production of Documents and Things**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you will submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Quash Subpoena

Tentative Ruling: Plaintiff's Motion to Quash Subpoena is DENIED. However, the Court orders the subpoena issued to Adventist Health Physicians modified, restricting the time frame to the period beginning August 29, 2012 (five years before seeking treatment for a headache on August 2017). (Code Civ. Proc. §1987.1(a).)

The subpoena seeks from Adventist Health Physicians Network the following:

Records (including, digital information), that examine, affect, address, or involve in any way Limited to head, neck, back, shoulders, arms, legs and date range of 4/23/2008 to present, regarding ALISA MARIE BACCUS; DOB: 3/31/04; SS#: XXX-XX-1942, to include but not limited to examinations, medical history, diagnosis, treatment, testing, radiology, prognosis, prescriptions, and billing (including, but not limited, to payments, adjustments, reimbursements,

and explanations of benefits). EXCLUDE: health information that may be related to reproductive health care.

Plaintiff is 22 years old. Records dating to when the patient was four years of age is overbroad. *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862 (trial court erred in requiring plaintiffs to make unlimited disclosure of their lifetime medical histories). The Court otherwise does not quash or modify the subpoena. Defendant is not required to accept plaintiff's representations. There is the potential that Plaintiff's symptoms of injury such as pain in her extremities (hip and shoulder pain disclosed to the examining chiropractor (6/29/26 Dewey Dec at Ex C)) result from prior injuries to Plaintiff's arms, shoulders and legs and pre-existed the subject motor vehicle accident. Plaintiff's failure to identify her medical examination for a headache in 2017 in her form interrogatories (P's Response to Form Interrogatory 10.1 (6/29/26 Dewey Dec at Ex B)) suggests she may not recall all such injuries/treatment she may have suffered in the past.

Adventist Health Physicians Network is ordered to appear within 30 days and produce the requested records, excluding records dating from before August 29, 2012.

The request for monetary sanctions is denied.

Defendant is ordered to serve notice of the Court's ruling on Plaintiff and Adventist Health Physicians Network.